

25STCV13009 25STCV13009

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-07-16

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Case Number: 25STCV13009 Hearing Date: July 16, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 16, 2026

Case Name: Barseghyan v. Volvo Car USA
LLC.

Case No.: 25STCV13009

Matter: Motion for Attorney Fees

Moving

Party: Plaintiff Astghik

Barseghyan

Responding Party: Defendant Volvo Car USA LLC

Tentative

Ruling: Plaintiff Astghik

Barseghyan's motion for attorneys' fees is granted in part and denied in part.

On May 5,

2025, Plaintiff Astghik Barseghyan ("Plaintiff") filed this action against Defendant Volvo Car USA LLC ("Volvo"), a Delaware limited liability company, SSF, Inc., a California Corporation, and Does 1 through 30. The Complaint alleged 9 causes of action for: (1) fraud and deceit; (2) breach of written

warranty pursuant to the Magnuson-Moss Warranty Act; (3) breach of implied warranty pursuant to the Magnuson-Moss Warranty Act; (4) breach of written warranty pursuant to Song-Beverly Consumer Warranty Act; (5) breach of implied warranty pursuant to Song-Beverly Consumer Warranty Act; (6) violation of Business and Professions Code section 17200, et seq.; (7) violation of Business and Professions Code section 17500, et seq.; (8) negligence; and (9) strict liability.

On September 15, 2025, the parties executed a Settlement Agreement, and on October 7, 2025, Plaintiff filed a notice of Conditional Settlement.

On April 1, 2026, Plaintiff filed its Memorandum of Costs for a total of \$3,676.01.

On June 8, 2026, the Court granted in part and denied in part Volvo's motion to tax \$2,890.90.

Plaintiff moves for attorneys' fees and costs. Plaintiff opposes.

Legal Standard

Where the buyer of a vehicle prevails in an action under the Song-Beverly Act, he "shall be allowed by the court to recover . . . a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred" (Civ. Code, § 1794, subd. (d).)

"[T]he starting point of every fee award . . . must be a calculation of the attorney's services in terms of the time he has expended on the case. Anchoring the analysis to this concept is the only way of approaching the problem that can claim objectivity, a claim which is obviously vital to the prestige of the bar and the courts." (In re Vitamin Cases (2003) 110 Cal. App. 4th 1041, 1058, [citation omitted].) "[T]he primary method for establishing the amount of 'reasonable' attorney fees is the lodestar method. The lodestar (or touchstone) is produced by multiplying the number of hours reasonably expended by counsel by a reasonable hourly rate." (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal. App. 4th 819, 833 (Thayer).) Under this approach, a base amount is calculated from a

compilation of time reasonably spent and reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48 (Priest); Serrano v. Unruh (1982) 32 Cal.3d 621, 639 (Serrano).) A fee request that appears unreasonably inflated is a special circumstance that permits the trial court to reduce the award or deny it altogether. (Serrano, supra, 32 Cal. 3d at p. 635.)

Analysis

Preliminary

Matter

Code

of Civil Procedure section 1005, subdivision (b) states that an opposition "shall be filed with the court and a copy served on each party at least nine court days, and all reply papers at least five court days before the hearing." (Code Civ. Proc., § 1005, subd. (b).)

Volvo

requests that the Court exercise its discretion to consider the untimely opposition. Volvo's opposition was due on July 2, 2026. Volvo filed its opposition on July 10, 2026. Based on Patrick Kimball's email of July 9, 2026 (Exh. C to Tolmasoff declaration) indicating that Plaintiff will not oppose the timeliness of the opposition, the Court will exercise its discretion and consider Volvo's opposition.

Plaintiff's

Motion for Attorneys' Fees

Plaintiff

moves for attorneys' fees in the amount of \$41,545.00 in attorneys' fees, and reimbursement of \$3,676.01 in costs. Plaintiff also moves for a lodestar multiplier of 1.5, resulting in an additional \$20,772.50. Plaintiff requests the Court to grant an award of \$66,128.51.

Reasonableness of Plaintiffs'

Counsel's Rates

"The 'experienced trial judge is the best judge of the value of professional services rendered in his court, and

while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.” (Priest, supra, 20 Cal.3d at p. 49.) “The prevailing party and fee applicant bears “the burden of showing that the fees incurred were ... ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’” [Citation.] “[c]ourts have uniformly held that the party moving for statutory attorney fees or sanctions has the burden of proof”). It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, “then the court must take this into account and award attorney fees in a lesser amount.” (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247 (Mikhaeilpoor).)

Plaintiff

requests that the Court accept Plaintiff's Counsel, Hovanes Margarian's ("Margarian") billing rate for contingency cases of \$650 and \$750 per hour. (Margarin Decl., ¶¶ 9-10.) Plaintiff requests that the Court accept Plaintiff's Counsel Patrick Kimball's ("Kimball") hourly rate of \$700. (Kimball Decl. ¶ 12.) Plaintiff argues that the Court should grant the \$100 rate increase in both cases because the “\$100 additional charge for non-contingency work is minimal and reasonable.” (Kimball Decl., ¶ 9; Margarian Decl., ¶15.) However, the Court finds that Plaintiff has not met its burden to establish the reasonableness of each counsel's hourly rate. The burden falls on Plaintiff to establish the reasonableness of counsel's hourly rate. The Court finds that Plaintiff has not done so and, based on the evidence and the Court's experience with attorneys with similar backgrounds, Plaintiff's hourly rate request is excessive.

Thus, the

Court will reduce both Margarian's and Kimball's hourly rates by \$100. The Court will reduce the total amount of \$5,090 to reflect the modified hourly rate.

Reasonableness of Hours

The prevailing party and fee

applicant bears “the burden of showing that the fees incurred were ... ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’” [Citation.] “[c]ourts have uniformly held that the party moving for statutory attorney fees or sanctions has the burden of proof”). It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances,

“then the court must take this into account and award attorney fees in a lesser amount.” (Mikhaeilpoor, supra, 48 Cal.App.5th at p. 247.) “[T]he attorney fee statute provides that fees must be based on “actual time expended” and “determined by the court to have been reasonably incurred.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 819–820.)

Plaintiff

requests that the Court accept all of the 50.9 hours expended on this case as reasonable. (Mot., 5:13-17.)

In

opposition, Volvo disputes Plaintiff’s request as excessive and argues that Plaintiff’s request should be reduced because the case was settled in four months.

Plaintiff’s

case was resolved within four months of filing. Repeatedly, Plaintiff’s attorneys assert that they are experienced attorneys; however, as experienced attorneys, the request for 50.9 hours in four months appears excessive and unreasonable. Plaintiffs requested that the Court accept their rates based on their experience but also requested the high number of hours.

Plaintiff

also requests the Court to compensate for pre-litigation and consultation, which are not recoverable from the opposing party. Thus, the Court strikes \$2,205 of the requested amount.

Volvo also

argues that several of Plaintiff’s entries are duplicative throughout the course of the four months. Plaintiffs have not justified the duplicative entries or entries that were not earned, so the Court will reduce the total request by \$9,440. The Court also previously determined that the expert witness fees were unreasonable, given that the case was resolved in such a brief time. Plaintiff did not, and has not, justified the need for an expert to conduct an inspection of the vehicle; thus, the Court reduces the total amount by \$4,130.

Thus,

Plaintiff has not met their burden to justify the reasonableness of the 50.9 hours worked; the Court will reduce an additional \$15,775 from the total

amount.

Lodestar Multiplier

“[T]he

trial court is not required to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case; moreover, the party seeking a fee enhancement bears the burden of proof. In each case, the trial court should consider whether, and to what extent, the attorney and client have been able to mitigate the risk of nonpayment, e.g., because the client has agreed to pay some portion of the lodestar amount regardless of outcome. It should also consider the degree to which the relevant market compensates for contingency risk, extraordinary skill, or other factors under *Serrano III*.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.)

Plaintiff

contends that the Court should award Plaintiff a lodestar multiplier of 1.5 because the other courts in Los Angeles have granted the multiplier, and also because lemon law is novel and complex. However, Plaintiff did not specify what made this case novel or complex;; the record reflects that it was straightforward and resolved within four months. Moreover, Plaintiff's attorneys were experienced attorneys; thus, the case was not complex enough to warrant a lodestar multiplier.

Costs

The Court

previously ruled on Volvo's motion to tax costs. Thus, Plaintiff is entitled to \$785.11 in costs.

Conclusion

Plaintiff's motion for attorneys'

fees is granted in part and denied in part. Plaintiff is

awarded

fees and costs in the total amount of \$21,465.11.